



**DEPARTMENT OF THE NAVY  
NAVAL AIR WARFARE CENTER TRAINING SYSTEMS DIVISION  
12211 SCIENCE DRIVE  
ORLANDO FLORIDA 32826-3224**

J&A No. 25-0048

**JUSTIFICATION AND APPROVAL  
FOR USE OF OTHER THAN FULL AND OPEN COMPETITION**

1. Contracting Activity

Naval Air Warfare Center Training Systems Division (NAWCTSD)

2. Description of the Action Being Approved

This Justification and Approval (J&A) authorizes and approves the issuance of a contract on a sole source basis to Survival Systems USA, Inc. (SSUSA) for the procurement of the United States Marine Corps (USMC) Multi-Use Egress Trainers (MUET) at the following six locations:

- Camp Pendleton (Horno), CA
- Camp Pendleton (Del Mar), CA
- Camp Blaz, Guam
- Camp Lejeune, NC
- Camp Hansen, Okinawa, Japan
- Marine Corps Air Station Kaneohe Bay, Honolulu, HI

3. Description of Supplies/Services

The contract will include the procurement of one MUET training device followed by five subsequent options for additional MUETs, with an anticipated delivery date for the sixth MUET in FY29. The estimated total value of the contract action is \$15M as set forth in the table below.

**Estimated Dollar Value**

|              | FY 25 –29<br>Total |
|--------------|--------------------|
| PMC          | \$15M              |
| <b>Total</b> | <b>\$15M</b>       |

4. Statutory Authority Permitting Other Than Full and Open Competition

10 U.S.C. 3204(a)(1), Only one responsible source and no other supplies or services will satisfy agency requirements.

## 5. Rationale Justifying Use of Cited Statutory Authority

As part of the Marine Corps Training and Education Command directive for deployment, students must complete underwater egress training. The current underwater egress training environment includes the crane structure which connects to the Family of Egress Trainer cabins via the lifting system. Each cabin includes an attached ring that connects to the lifting system that allows the interchangeability among the Underwater Egress Trainers (UET). The UET instructs Marines on vehicle rollover issues and proper underwater egress techniques. The UET currently consists of the Modular Amphibious Egress Trainer (MAET), an underwater egress trainer that represents specific aircraft, cockpits and cabin emergency escape exits; and the Submerged Vehicle Egress Trainer (SVET), a UET that has the same modular core and rotational capabilities as the MAET, but dedicated for the High Mobility Multi-Purpose Wheeled Vehicles (HMMWV) & the Assault Amphibious Vehicle (AAV).

The MAETs and the SVETs are currently co-located in four locations - MCB Camp Pendleton, (Horno) CA.; MCB Camp Hansen, Okinawa, Japan; Marine Corps Air Station, Kaneohe Bay, Hawaii; and MCB Camp Lejeune, N.C. Camp Pendleton (Del Mar), CA and Camp Blaz, Guam are in the process of building new facilities which will house an additional MAET per location once construction is completed. The existing UET environment was established through multiple contract awards: N61339-00-D-0021 DO 0012 (cranes, lifting systems, and MAETs) and M67854-05-C-8005 (lifting systems). The current requirement is to procure new UET interoperable MUET cabins that allow underwater egress training for the new Amphibious Combat Vehicle (ACV) and the Joint Light Tactical Vehicle (JLTV) at each of these six sites. The Marine Corps does not have a requirement to modify the existing UET system.

Survival Systems USA Inc. (SSUSA) is the original designer, developer, and manufacturer of the existing UET lifting system and MAET and SVET egress trainers and owns the Intellectual Property (IP) that forms the basis of the load bearing portions of these trainers. The XGH is the lifting system required for MAETs and SVETS at the four existing sites. The two new sites will have the SSUSA manufactured SmartJib lifting system. SSUSA has confirmed the IP that comprises the basis of the MAET and SVET as well as the lifting systems (XGH, SmartJib) has never been sold and is not available for sale to any firm competitor, partner, or client, including the U.S. Government. Market Research was conducted during Q2-Q4 of FY24 that concluded SSUSA is the only responsible source with the requisite IP required to deliver the MUET without altering the existing infrastructure.

This highly specialized equipment's sole purpose is to simulate egress from military vehicles in an open ocean environment. SSUSA has multiple redundant safety systems to mitigate failures. It is reasonable to believe that altering the infrastructure without the requisite IP would have

unfavorable impacts to training, including malfunction, inoperability, or failure of hardware and software systems. Any failures could have severe consequences, including loss of life.

Procuring and installing equipment manufactured from another source without the engineering IP related to the lifting system challenges the safety and structural integrity of the UET training system and increases the risk of not meeting mission requirements.

Utilizing a different design would require replacement and/or modification of all existing underwater egress training equipment. These unacceptable delays include the time needed to re-design a viable replacement for the entire infrastructure, modification and/or replacement of existing cabins, development of new technical data, and training of personnel on the use and routine maintenance of the newly installed equipment. As the original equipment manufacturer of the existing UET, it is expected that no solution that requires a modification to the existing infrastructure could be ready for installation faster than a modular MUET solution designed to operate with the existing UET. It is expected that a MUET solution designed to operate with the existing UET will require no more than one month of installation, testing, and operator / maintainer training. In contrast, an engineering estimate for a UET modification would add three additional months for installation, testing, and operator / maintainer training. Therefore, any other source would incur a three month delay for each MUET. Additionally, it is expected that the MUET solution designed to operate with the existing UET will incur no more than one month of UET downtime, where training using the other UET capabilities would be lost. In contrast, a solution requiring a UET modification would incur four months of UET downtime. Considering trainer downtime, current utilization rate, and student throughput, this would result in the loss of training of up to [REDACTED] Marines, rendering them non-deployable and causing catastrophic operational risk. In contrast, procuring a MUET that is compatible with the currently fielded UET is anticipated to incur minimal lost training. The current training for amphibious egress training is significantly insufficient because the Marine Corps' new amphibious combat vehicles (ACV) are already fielded with nearly [REDACTED] systems currently in use and many more to follow, emphasizing the need for an expedient and interoperable training solution to eliminate negative training. Important operation plans (OPLANs) and Marines' lives are dependent on receiving this training. It has been determined an award to any other source would result in unnecessary additional cost, but more importantly unacceptable delays.

#### 6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable

NAWCTSD performed a web-based market search of companies involved with emergency egress trainers and contacted the most likely candidates by phone on 21 May 2024 to ask about their capabilities to fabricate a dunker trainer to upgrade the SVET. Only Survival Systems USA responded with positive interest to the phone calls.

The instant requirement was synopsisized on the SAM.gov website on 31 May 2024 requesting sources to identify their interest and capability to respond to the requirements. The Government received four responses:

- Survival Systems USA – replied completely and provided information requested per the Sources Sought Notice (SSN).
- [REDACTED] – responded to the SSN of their interest but did not provide information requested in the SSN. Upon further research, [REDACTED] appeared to be an automated response with no sign of egress trainer experience. They did not respond to Government emails requesting additional information.
- [REDACTED] – [REDACTED] builds Emergency Egress Lighting System (EELS) and is not able to meet the requirements posted in the SSN. [REDACTED] SSN response was for the sole purpose of notifying NAWCTSD that they are only interested in supplying the EELS for the MUET.
- [REDACTED] – responded to the SSN with interest but they are not able to meet the requirements posted in the SSN due to their training systems being non-submersible. When given an additional opportunity to provide more information via email they did not respond with further interest.

Having only one responsible response to the initial synopsis, NAWCTSD employed the Dynamic Small Business Search (DSBS) search engine on 8 June 2024, to search for companies using the keyword “egress”. The DSBS research did not find any additional or new companies that could meet the requirements posted in the SSN.

The Government posted a Presolicitation Notice/Intent to Sole Source Acquisition Strategy on the SAM.gov website on 25 July 2024. [REDACTED] responded on 12 August 2024 identifying their capabilities and experience supplying Helicopter Underwater Egress Trainer (HUET) solutions to other industries and foreign governments. NAWCTSD met with [REDACTED] via MS Teams on 19 August 2024 to confirm their emailed responses and allow for [REDACTED] to provide additional clarifying information.

During the meeting [REDACTED] confirmed it did not have access to the SSUSA intellectual property for the existing infrastructure. [REDACTED] indicated it could provide a MUET design, fabrication, and installation in a reduced timeframe. They indicated its solution to the upgrade of the SVET to a MUET would require alterations to the existing infrastructure to create a compatible system with their design. Any such design changes would have to go through the Government systems engineering technical review and change process which would result in the timeline delays and safety concerns noted above and would require significant UET down time as discussed in paragraph five. As such, these types of alterations preclude [REDACTED] solution from further consideration. The Government communicated its decision to the

contractor 17 September 2024. Having completed extensive Market Research for this requirement, NAWCTSD concluded SSUSA is the only responsible source, and no other supplies or services will satisfy agency requirements.

7. Determination of Fair and Reasonable Cost

The Contracting Officer has determined the anticipated cost to the Government of the supplies/services covered by this J&A will be fair and reasonable.

8. Actions to Remove Barriers to Future Competition

For the reasons set forth in Paragraph 5, NAWCTSD has no plans at this time to compete future contracts for the MUET requirement covered by this document. However, if another potential source emerges, NAWCTSD will assess whether competition for future requirements is feasible.



**CERTIFICATIONS AND APPROVAL**

